

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

MOTION TO COMPEL PRODUCTION OF DOCUMENTS

Pursuant to 46 C.F.R. § 502.150(a)(1), Complainant TPG Pressure, Inc. (“**TPG**” or “**Complainant**”), through its undersigned counsel, hereby moves for an order compelling Epic Freight Solutions LLC (“**Epic Freight**”) and Omni Logistics LLC (“**Omni Logistics**” and, collectively with Epic Freight, “**Respondents**”) to produce SMS and WhatsApp messages TPG requested in its discovery requests.

Pursuant to 46 C.F.R. § 502.150(a)(2)(i), on November 16, 2023, TPG’s counsel contacted Respondents’ counsel to obtain compliance without the need for this motion. TPG’s counsel also reached out to Respondents’ counsel regarding this matter on November 20, 2023, November 27, 2023, and December 4, 2023. Although Respondents’ counsel did not object to the request, none of the documents at issue have been produced as of the date of this motion. On the evening of December 6, 2023, Respondents’ counsel informed TPG’s counsel that their key custodian was out of the country and that they intended to produce the documents sought the following week. Because the discovery deadline expires on December 21, 2023, at this time,

TPG has no option but to file this motion to avoid prejudice to its right to obtain relevant documents.

FACTUAL BACKGROUND

On May 16, 2023, TPG served its First Set of Requests for Production of Documents (“**Requests for Production**”) directed to both Respondents, which included a comprehensive definition of documents as follows:

The terms “document” or “documents” shall include the original (or, if the information called for cannot be provided as to the original, then each and every copy, duplicate and reproduction) of any medium upon which or from which intelligence or information can be recorded or retrieved, including, but not limited to, all physical and electronic forms of correspondence, email, appointment records, computations, computer printouts, contracts, diaries, drafts of documents, entries, estimates, evaluations, financial analyses, financial statements, inspection reports, intraoffice and interoffice communications, e-mails, invoices, letters, meeting reports, memoranda, notes and memoranda of all conversations including telephone calls, minutes, orders, receipts, records of accounts, reports, statements, statistical records, studies, summaries, writings, or work papers which are within your possession, custody or control or that of your attorneys, experts, accountants, insurers, agents, officers or directors, wherever located. In all cases where a document is in a language other than English, all translations and material related to each and every translation of such documents also shall be considered to be documents. Thus, the terms “document” or “documents” means all written, typed, printed, reported, recorded or graphic matter and all photographic matters or sound reproduction tapes, records, or other devices, however produced, reproduced, or stored, now or formerly within your actual or constructive possession, custody or control. Additionally, “document” or “documents” shall include, but are not limited to, all telegrams, telexes, cables, telephone records, telephone bills, memoranda (circulated and uncirculated), market studies, correspondence, e-mails, reports, studies, compilations of data, filings, files, internal policies or rules or regulations, minutes, agenda, requests, records, charts, lists, analyses, graphs, diagrams, schematics, blueprints, specifications, worksheets, change orders, drawings, cost estimates, books, expense reports, notebooks, notes, diaries, appointment books, calendars, recordings, transcriptions, computer including the following requests for production of documents: discs, file cards,

computer printouts, microfilm, microfiche, video tapes, media articles or reports, accounts, books and records, ledgers, journals and other financial records, audits, instructions, questionnaires, profit and loss statements, financial statements, annual reports, state and federal tax returns, checkbooks, canceled checks, billings, contracts or agreements or releases, and any drafts, copies, or reproductions of the foregoing; and any copy of the foregoing upon which any notations in any form have been made which do not appear on the originals; and any copy of the foregoing upon which any language, notation or comments, in any form, which appear on the original or any other copy have been deleted, highlighted, altered or edited.

See Declaration of Gene M. Burd ("**Burd Decl.**"), Ex. A at 2-3. Additionally, the term communication expressly includes text messages, as follows:

The term "communications" shall include any oral, written, or electronic transmission of information including, but not limited to, meetings, discussions, conversations, telephone calls, memoranda, letters, telecopies, telexes, email messages, text messages, conferences, seminars, or notes.

Burd Decl., Ex. A at 3.

The Requests for Production included, *inter alia*, the following requests to produce documents and communication:

1. All documents and communications identified in your answers to the Interrogatories and that you relied upon in answering the Interrogatories and the Requests for Admission.
2. All documents and communications that establish the relationship between Respondents, including, but not limited to: (i) bylaws; (ii) articles of incorporation; (iii) meeting minutes; (iv) operating agreements; (v) agendas; (vi) summaries; (vii) organizational charts; and (viii) list of shareholders.
3. All documents and communication sufficient to show Respondents' ownership and ownership structure.
4. All documents and communication, including, but not limited to, agreements, understandings, engagement

letters, contracts, between Respondents relating to their provision of services to each other, including but not limited to, issuance of invoices, documents or communications concerning carriage of cargo, and making arrangements for carriage of cargo.

...

6. All documents and communications with Complainant relating to Respondents' Invoices.

7. All documents and communications relating to demurrage charges included in Respondents' Invoices, including but not limited to, third party invoices and notices.

...

9. All documents and communications sufficient to identify the following with respect to each and every container identified in Respondents' Invoices:

- a. Date that container is made available;
- b. The port of discharge;
- c. The container number or numbers;
- d. The allowed free time in days;
- e. The start date of free time;
- f. The end date of free time;
- g. The applicable detention or demurrage rule on which the daily rate is based;
- h. The applicable rate or rates per the applicable rule;
- i. The total amount due; and
- j. The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees.

10. All documents and communications sufficient to identify the party which caused or contributed to the underlying cause of the demurrage charges included in the Respondents' Invoices.

...

12. All documents and communications concerning the detention and demurrage rules on which Respondents relied in order to charge demurrage charges included in Respondents' Invoices to the Complainant.

14. All documents and communications, including retainer agreements, reflecting persons with whom you have discussed this case.

15. Any and all documents and communications containing the name and home and business addresses of all individuals contacted as potential witnesses.

...

19. Any and all documents and communications substantiating each defense to Complainant's causes of action, including but not limited to those set forth in the Affirmative Defenses in the Answer.

...

21. Any and/or all documents or communications of any nature whatsoever which relate, refer, or pertain to Complainant.

22. All documents and communications relating to tariffs applicable to the Respondents' Invoices.

23. All documents and communications sufficient to show that Respondents provided Complainant "information as to where information about demurrage can be found."

After TPG learned that the parties used text SMS and WhatsApp messages to communicate with each other¹, TPG requested that Respondents confirm that they will be producing text messages responsive to the respective Requests for Production, which include not

¹ For example, TPG understands that Ken Thompson, President of TPG and Respondent's Executive VP Johanse Manzanarez used text messages for communication. These messages are no longer accessible to Mr. Thompson due to change of his device. Further, TPG produced WhatsApp communication relevant to Respondents' discovery requests.

only messages exchanged between the parties but also internal documents and communication as well as documents and communication with third parties. However, no relevant documents and communication have been produced.

ARGUMENT

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1). A party may serve on any other party a request to produce "electronically stored information, including writings, drawings, graphs, charts, photographs, sound recordings, images, and other data or data compilations . . ." 46 C.F.R. 502.146(a)(1)(i). Subject to Rule 26(b)(1)'s requirements (relevance and proportionality), information stored on mobile devices and related information may be discoverable. *See Henson v. Turn, Inc.*, 2018 U.S. Dist. LEXIS 181037, at *13 (N.D. Cal. Oct. 22, 2018); *Arceneaux v. Assuranceforeningen Gard Ins. Co.*, 2010 U.S. Dist. LEXIS 24371, at *3–*4 (W.D. La. Feb. 25, 2010) (denying motion to quash defendant's subpoena to plaintiff's cell phone carrier because information sought was relevant to plaintiff's claims). The Requests for Production specifically included "all physical and electronic forms of correspondence" and communication, and the term "communication" includes "text messages." Accordingly, Respondents are required to produce text messages that are requested in the Requests for Production.

WHEREFORE, the Complainant respectfully requests that the Chief Administrative Judge grant this motion and compel Respondents to produce the documents that are the subject of this Motion.

Respectfully submitted December 6, 2023

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CERTIFICATE OF SERVICE

I certify that on December 6, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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